MASTER SOFTWARE SERVICES AGREEMENT

This Master Software Services Agreement (the "Agreement") is entered into as of October 1, 2024 (the "Effective Date"), by and between:
1. Apex Global Technologies Inc., a Delaware corporation having its principal office at 500 Tech Boulevard, San Francisco, CA ("Client"), and
2. NovaCloud Systems LLC, a California limited liability company having its office at 120 Innovation Way, San Jose, CA ("Vendor").

1. SCOPE OF SERVICES
Vendor shall provide cloud architecture consulting, AI document intelligence pipeline implementation, and DevOps managed services as outlined in Statement of Work #1.

2. FEES AND PAYMENT SCHEDULE
Client shall pay Vendor a fixed monthly retainer of $24,500 USD payable net-30 days upon invoice receipt. Late payments shall incur a service charge of 1.5% per month or the maximum rate permissible by law.

3. TERM AND TERMINATION
(a) Initial Term: This Agreement shall remain in effect for twelve (12) consecutive months from the Effective Date.
(b) Termination for Convenience: Either party may terminate this Agreement without cause upon providing sixty (60) days prior written notice to the other party.
(c) Termination for Cause: In the event of a material breach, the non-breaching party may terminate immediately upon thirty (30) days notice if uncured.

4. CONFIDENTIALITY AND INTELLECTUAL PROPERTY

(a) Confidentiality: Each party agrees to preserve all proprietary and technical information disclosed hereunder for five (5) years following termination.

(b) IP Ownership: All deliverables, customized models, and documentation created specifically for Client shall be deemed Work Made for Hire and solely owned by Client.

5. LIMITATION OF LIABILITY

Except for breaches of Section 4 (Confidentiality) or willful misconduct, neither party's aggregate liability under this Agreement shall exceed the total fees paid by Client during the preceding six (6) months ($147,000 USD).

6. GOVERNING LAW AND ARBITRATION

This Agreement shall be governed by the laws of the State of California. Any dispute arising out of this Agreement shall be finally settled by binding arbitration administered by JAMS in San Francisco, California.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.

APEX GLOBAL TECHNOLOGIES INC. NOVACLOUD SYSTEMS LLC

By: Sarah Jenkins, VP of Engineering By: Marcus Vance, Managing Director

Date: October 1, 2024 Date: October 1, 2024